

2. MARTIN, ET AL. v. STATE OF CALIFORNIA, ET AL., 25CV2199**Demurrer**

The Plaintiffs are husband and wife; the wife was seriously injured, including traumatic brain injury, when she hit a pothole while riding a scooter on public property, which the Complaint alleges was a dangerous condition. The husband has included a claim for loss of consortium based on his wife's injuries. Defendant is a public agency whose liability is governed by the California Tort Claims Act. (Gov. Code, §§ 810–996.6.) Defendant demurs to the husband's loss of consortium claim on the grounds that there is no statute within the Tort Claims Act that authorizes an action against a public agency for loss of consortium.

1. Legal Principles

A demurrer tests the sufficiency of a complaint by raising questions of law. (*Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 20.) In determining the merits of a demurrer, all material facts pleaded in the complaint and those that arise by reasonable implication, but not conclusions of fact or law, are deemed admitted by the demurring party. (*Moore v. Conliffe* (1994) 7 Cal.4th 634, 638; *Interinsurance Exchange v. Narula* (1995) 33 Cal.App.4th 1140, 1143.) The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (*Flynn v. Higham* (1983) 149 Cal.App.3d 677, 679.)

2. Discussion

Government Code section 835 describes a public agency's liability for dangerous conditions on public property: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within

the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Government Code section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Thus, the public agency's liability requires 1) an injury 2) proximately caused by 3) a condition that was either created by a negligent act or omission of an employee or of which the agency had either constructive or actual notice, and 4) that the type of injury incurred was foreseeable. Given that the statute itself defines the parameters of a duty by the public agency toward people using public property, the requirements of the statute restate the basic principles of a negligence claim: 1) the existence of a duty, 2) a breach of that duty [by creating or failing to remedy a known dangerous condition], 3) injury to the plaintiff caused by the defendant's breach, and 4) actual damages.

(*Romero v. Los Angeles Rams* (2023) 91 Cal.App.5th 562, 567; *Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1139 ["In sum, we conclude that negligence under section 835, subdivision (a), is established under ordinary tort principles concerning the reasonableness of a defendant's conduct in light of the foreseeable risk of harm."].)

There is no dispute that the wife's injuries come within the statute because she is the person who, according to the allegations of the Complaint, sustained actual injuries proximately caused by her direct encounter with the dangerous condition. Defendant argues that there is no statute that authorizes a derivative action against a public agency for the husband's loss of consortium. The question then, is whether a loss of consortium claim is an injury that is a "reasonably foreseeable risk" resulting from a dangerous condition of public property. The definition of dangerous condition found in Government Code section 830, combined with the traditional requirement codified in Government Code section 835, subdivision (a)—that the public entity's creation of the dangerous condition must have been unreasonable—reflects an ordinary negligence standard. (See *Lugtu v. Cal. Highway Patrol* (2001) 26 Cal.4th 703, 716 ["Under general

negligence principles, ... a person ordinarily is obligated to exercise due care in his or her own actions so as not to create an *unreasonable* risk of injury to others, and *this legal duty generally is owed to the class of persons who it is reasonably foreseeable may be injured as the result of the actor's conduct*" (italics added)); *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1128; *Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156; Civ. Code, § 1714; CACI No. 1001 [defining the basic duty of care in ordinary premises-liability dangerous condition cases].)

Loss of consortium is one of a class of negligence-based torts pursuant to which a person who is closely related to an injured person can sustain a claim for their own harms resulting from the third person's injuries, such as negligent infliction of emotional distress to a person who witnesses the injury of a close family member, or as in this case, loss of consortium to a spouse who suffers from a loss of marital companionship because of an injury to the other spouse. These are derivative causes of action that depend on the necessity of an injury to another person. (*Vanhooser v. Superior Court* (2012) 206 Cal.App.4th 921, 927–28.)

As to a claim for loss of consortium, such a claim at common law has four elements: "(1) a valid and lawful marriage between the plaintiff and the person injured at the time of the injury; [¶] (2) a tortious injury to the plaintiff's spouse; [¶] (3) loss of consortium suffered by the plaintiff; and [¶] (4) the loss was proximately caused by the defendant's act." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 746, fn. 2, citing 4 Levy et al., Cal. Torts (2006) Loss of Consortium, § 56.02 [2], p. 56-4.) "A cause of action for loss of consortium is, by its nature, dependent on the existence of a cause of action for tortious injury to a spouse." (*Hahn v. Mirda, supra*, at p. 746.)

There appears to be no directly applicable authority related to the Tort Claims Act, but there is some relevant guidance in a California Supreme Court case addressing the statutory limits of employer liability under the Workers' Compensation statutes. In *LeFiell Mfg. Co. v. Superior Court* (2012) 55 Cal.4th 275, the Court considered whether a

wife could recover for loss of consortium for a husband's injuries covered by Workers' Compensation statutes. It noted that in general, Workers' Compensation claims are governed by the "exclusivity rule" that limits recovery to the worker only, and excludes recovery by any other family member. (See Lab. Code, § 3600.) However, that case involved a statutory exception for injuries caused by the lack of a "point of operation guard" on a power press, in which case the applicable statute provided that the employee could sue the employer for damages beyond the Workers' Compensation system, but that the employee's dependents could not pursue such a claim unless the employee had died. (See Lab. Code, § 4558, subd. (b).) Thus, the spouse in that case could not pursue a loss of consortium claim because the Legislature had expressly excluded any cause of action brought by the employee's dependents for any injury short of death. The Court's reasoning was based on the plain language of the statutes.

In this case, the plain language of the statute creates public agency liability where "the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred." It does not expressly address dependents or family members, it only limits claims to "reasonably foreseeable risks." In a public park, it is reasonably foreseeable that a person might be accompanied by close family members, who, upon witnessing the injury, might have a claim for negligent infliction of emotional distress. It is also reasonably foreseeable that a member of the public injured on public property might have a spouse who could prove their loss of consortium harm resulting from the person's injuries. These causes of action, while derivative, are fundamentally rooted in and are proximately caused by the public agency's purported negligence. Government Code section 835 authorizes claims based on public agency negligence, when it is factually established. The Legislature could have limited this liability to prohibit claims by dependents or family members of injured persons, but it did not.

TENTATIVE RULING # 2: DEFENDANT’S DEMURRER IS OVERRULED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.